

BSA 2023

Bharatiya Sakshya Adhiniyam, 2023

Bharatiya Sakshya Adhiniyam (BSA), 2023

User Query :

Yesterday I received a WhatsApp message saying that my bank KYC would expire that night. The sender used the bank's logo and sent me a link. I entered my customer ID, password and OTP on the page. Within a few minutes, ₹85,000 was transferred from my account through UPI and net banking. I later found out that the message and website were fake. What legal provisions may apply to this incident?

Job Id. :

qwen3-30b/Scenario 1/Bharatiya Sakshya Adhiniyam (BSA), 2023

Prepared by :

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Date :

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AI-Powered Legal Intelligence Platform

APPLICABLE SECTIONS

Section 61 — Electronic or digital record

Electronic records are not denied legal effect merely because they are electronic/digital.

Section 62 — Special provisions as to evidence relating to electronic record

Electronic-record contents are proved in accordance with **section 63** .

Section 63 — Special provisions relating to electronic records

Relevant to proving WhatsApp messages, website captures and digital transaction records.

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1
- The BSA provisions are evidentiary rather than substantive offences. Sections 61-63 are the principal cluster for the WhatsApp message, website material and banking/UPI electronic records.

✓ STRENGTHS & RIGHTS

- 1
- Original messages/devices and transaction records can support authenticity and continuity.

✗ RISKS & OBLIGATIONS

- 1
- Screenshots alone may invite authenticity challenges; preserve originals and metadata where possible.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

- 1
- Use the certificate/process required by **section 63** where applicable.

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